

Here, Sandra Danko was a transferor of her interest in the residence, and that transaction was not voidable as it appears in the records. Family Code §910 may expose “the community estate” to a spouse’s debt before or during marriage, but it does not make the non-debtor spouse *personally* liable. Robles Brothers may not rely on its pleading alone after Sandra met her initial burden. (Code Civ. Proc., § 437c(p)(2).) The 3rd cause is therefore adjudicated in Sandra’s favor in her *individual* capacity.

Continuance is not Warranted - As to Robles Brothers’ request for a continuance for further discovery, a declaration under CCP §437c(h) must identify “facts essential to justify opposition may exist,” explain why they cannot then be presented, and show why additional time is needed. Here, the Chiang declaration describes some contentious discovery disputes and pending motions for discoveries, but does not identify specific expected evidence that could be dispositive to the goals of this motion, or to Sandra’s individual status.

Service or Joinder of the Trustees in Their Representative Capacities -A trust is not a separate legal entity. As a general rule, the trustee is the real party in interest. (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473.) The trustee must be proceeded against in a representative capacity. (*Id.*) As the Dankos argue, the record here does not establish service or an appearance in either of their representative capacities as trustees. It is unclear if the Dankos have been properly served as trustees and/or whether they are properly joined to the action. Because the motion does not clearly seek relief in those capacities, and that the record is insufficient to resolve the lack of service issues, the Court limits the ruling to the moving individuals.

3.

CASE #	CASE NAME	HEARING NAME
CVME2515406	RINI VS FCA US LLC	MOTION TO COMPEL INITIAL DISCLOSURES

Tentative Ruling: Motion to Compel is continued until 10-27-26 8:30 am M301. Plaintiff may file a Reply Brief.

Plaintiffs James Rini and Meghan Rini bring this Song-Beverly action regarding a 2016 Dodge Journey with multiple defects. Plaintiffs filed this action on 5/29/25. After Defendant filed a demurrer, Plaintiffs filed the First Amended Complaint (FAC) on 2/13/26. The FAC asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement concealment.

Plaintiffs move to compel Defendant FCA to comply with Code of Civil Procedure section 871.26 to provide initial disclosures and pay sanctions of \$2,500. They assert that the 60 days commenced upon the filing of Defendant’s demurrer, and that Defendant has not provided full and complete verified disclosures. They argue that a simple VIN search would return the records of the vehicle. They identify the missing documents.

In opposition, Defendant contends that section 871.26 applies to express warranty claims—to which the court sustained the demurrer and Plaintiff did not amend. It asserts that there are no requirement of verifications. It argues that section 871.26

establishes limited disclosure—not formal discovery that is overbroad and not required. It contends sanctions are not warranted.

In reply, Plaintiffs submitted a notice of non-opposition.

The Court continues this motion to allow the Plaintiff's to file a reply brief as it appears that they were unaware of the opposition.

4.

CASE #	CASE NAME	HEARING NAME
CVME2515406	RINI VS FCA US LLC	MOTION FOR SANCTIONS

Tentative Ruling: Sanction awarded to defendant in the amount of \$1,500.

Defendant FCA also moves for mandatory sanctions under section 871.26 due to Plaintiffs' failure to timely serve disclosures and provide complete information. The declaration of counsel indicates that Plaintiffs have not served any initial disclosures.

In opposition, Plaintiffs argue the motion is moot as the initial disclosures have been served. They assert sanctions are not warranted because the attorney previously assigned to the case left, and caused an inadvertent calendaring gap.

In reply, Defendant argues that the delayed disclosures do not moot the issue of sanctions.

Code of Civil Procedure section 871.26 applies to civil actions seeking restitution or replacement of a motor vehicle. (Code Civ. Proc. § 871.26(a).) Within 60 days of filing an answer or responsive pleading, the parties shall provide initial disclosures. (*Id.* at § 871.26(b), (f), (g), (h).) Here, Defendant filed a demurrer on 8/7/25; thus, disclosures were due 10/6/25. The motion is not moot due the fact that sanctions are still at issue. Section 871.26(j)(1) imposes a \$1,500 sanction against a plaintiff's attorney who failed to comply with the initial disclosures unless good cause is shown. Here, good cause is not shown as it appears to be a calendaring error compounded by the handling attorney's departure. A calendaring error is not good cause regardless of whether it was a current or former attorney.

5.

CASE #	CASE NAME	HEARING NAME
CVME2610835	MARTINEZ VS VSI, INC.	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: Motion is Granted. Jury Trial to be set within 120 days. Hearing Required.